# SOFTWARE-AS-A-SERVICE SUBSCRIPTION AGREEMENT

This Software-as-a-Service Subscription Agreement (the "**Agreement**") is entered into as of December 7, 2025 (the "**Effective Date**") by and between **Kestrel Marketing Cloud Inc**, a corporation (the "**Supplier**"), and **Arcadia Retail Inc.**, a retailer with its headquarters in the United States (the "**Customer**"). The Supplier and the Customer are each a "**Party**" and together the "**Parties**".

## 1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement:

"**Customer Data**" means all data, content and information submitted to or processed through the Services by or on behalf of the Customer, including Personal Data.

"**Personal Data**" means any information relating to an identified or identifiable natural person that forms part of Customer Data, being personal data of the Customer's customers and employees.

"**Services**" means the Supplier's hosted marketing cloud platform and related support, as made available to the Customer under this Agreement and described in the Supplier's then-current documentation.

"**Documentation**" means the Supplier's user guides and technical specifications for the Services made generally available to its customers.

"**Security Incident**" means a confirmed breach of the Supplier's security leading to unauthorised access to, or disclosure of, Customer Data in the Supplier's possession or control.

"**Term**" means the Initial Term together with each Renewal Term.

1.2 Headings are for convenience only and do not affect interpretation. "Including" means "including without limitation".

## 2. SERVICES AND SCOPE

2.1 Subject to this Agreement, the Supplier grants the Customer a non-exclusive, non-transferable, non-sublicensable right during the Term to access and use the Services for the Customer's internal business purposes.

2.2 The Supplier may modify, update or enhance the Services from time to time, provided that no such change materially reduces the core functionality of the Services during the then-current term.

2.3 The Customer shall not, and shall not permit any third party to: (a) copy, modify or create derivative works of the Services; (b) reverse engineer, decompile or disassemble the Services except as permitted by non-excludable law; (c) resell, sublicense or provide the Services to third parties; (d) use the Services in breach of applicable law or to transmit unlawful, infringing or malicious content; or (e) interfere with or disrupt the integrity or performance of the Services.

2.4 The Customer is responsible for its users' compliance with this Agreement, the security of its credentials, and the accuracy, quality and legality of Customer Data and the means by which it is acquired.

2.5 The Supplier may suspend access to the Services where reasonably necessary to prevent harm to the Services or other customers, or where the Customer is in material breach, and shall use reasonable efforts to give prior notice and to restore access promptly once the cause is resolved.

## 3. TERM AND RENEWAL

3.1 This Agreement commences on the Effective Date and continues until December 7, 2026 (the "**Initial Term**"), being a period of 12 months, unless terminated earlier in accordance with its terms.

3.2 This Agreement renews automatically for successive periods of 12 months (each a "**Renewal Term**") unless either Party gives the other at least 45 days' written notice of non-renewal before the end of the then-current Initial Term or Renewal Term, in which case this Agreement expires at the end of that term.

## 4. FEES AND PAYMENT

4.1 The Customer shall pay the Supplier annual fees of USD 210,000 for the Services (the "**Fees**"). The total contract value for the Initial Term is USD 210,000.

4.2 The Supplier shall invoice the Fees in advance for each year of the Term. Undisputed invoices are payable within 60 days of the Customer's receipt of a valid invoice.

4.3 A valid invoice must identify the Customer, the Services and the amount due, and be addressed in accordance with clause 15.

4.4 The Customer shall notify the Supplier in writing of any good-faith dispute regarding an invoice promptly after receipt, giving reasonable detail, and shall pay the undisputed portion by the due date. The Parties shall work in good faith to resolve the dispute.

4.5 Fees are exclusive of sales, use, value-added, withholding and similar taxes, which the Customer shall bear, other than taxes on the Supplier's net income. Unless otherwise agreed in writing, the Fees for any Renewal Term shall be the Fees in effect at the end of the preceding term.

4.6 Overdue undisputed amounts may, at the Supplier's election, bear interest at the maximum rate permitted by applicable law from the due date until payment. The Supplier may suspend the Services under clause 2.5 for non-payment of undisputed amounts that remain unpaid after written notice.

## 5. SERVICE LEVELS

5.1 The Supplier shall use commercially reasonable efforts to make the Services available at least 99.0% of the time in each calendar month, excluding downtime resulting from: (a) scheduled or emergency maintenance; (b) the Customer's equipment, software, networks or

acts or omissions; (c) third-party services or the public internet; (d) suspension permitted under this Agreement; and (e) force majeure events under clause 16.

5.2 The Supplier shall notify the Customer of any Security Incident within 96 hours after the Supplier confirms the Security Incident.

5.3 If availability falls below the level in clause 5.1 in a month, the Customer shall notify the Supplier, and the Supplier shall investigate and use reasonable efforts to remedy the cause. Except for the Customer's rights under clause 12, this clause 5 states the Customer's sole service-level remedy.

## 6. DATA PROTECTION AND SECURITY

6.1 The Parties acknowledge that the Services involve the processing of Personal Data of the Customer's customers and employees. As between the Parties, the Customer is responsible for the lawfulness of its collection and instruction of such Personal Data and for providing any required notices and obtaining any required consents.

6.2 The Supplier shall process Personal Data only to provide the Services, in accordance with the Customer's documented instructions as given through its use of the Services and this Agreement, and as required by law.

6.3 The Supplier shall maintain administrative, technical and physical safeguards appropriate to the nature of the Customer Data and designed to protect it against unauthorised access, loss or disclosure.

6.4 The Supplier may engage subcontractors and hosting providers to support the Services and remains responsible for their performance of the obligations assumed by it under this clause to the extent required by applicable law.

6.5 Upon request made within 30 days after expiry or termination, the Supplier shall make Customer Data available for export in a standard format. Thereafter, the Supplier may delete Customer Data in accordance with its standard retention practices.

## 7. INTELLECTUAL PROPERTY

7.1 The Supplier and its licensors own all right, title and interest in the Services, the Documentation, and all improvements, modifications and derivatives of them, including any feedback the Customer provides, which the Customer hereby assigns to the Supplier to the extent necessary. No rights are granted except as expressly stated.

7.2 As between the Parties, the Customer retains all rights in the Customer Data. The Customer grants the Supplier a limited, non-exclusive licence during the Term to host, copy, transmit and process Customer Data solely to provide the Services. The Supplier may also use aggregated and de-identified data that does not identify the Customer or any individual to operate and improve its services.

## 8. CONFIDENTIALITY

8.1 "**Confidential Information**" means non-public information disclosed by one Party (the "**Discloser**") to the other (the "**Recipient**") that is marked confidential or that a reasonable person would understand to be confidential, including Customer Data, the Documentation and the terms of this Agreement. It excludes information that: (a) is or becomes public other than through the Recipient's breach; (b) was lawfully known to the Recipient before disclosure; (c) is lawfully received from a third party without restriction; or (d) is independently developed without use of the Discloser's information.

8.2 The Recipient shall use the Discloser's Confidential Information only for the purposes of this Agreement, protect it with at least reasonable care, and disclose it only to its personnel, advisers and subcontractors who need to know it and are bound by obligations of confidentiality.

8.3 The Recipient may disclose Confidential Information to the extent required by law or court order, provided it gives the Discloser prompt notice where lawful and reasonable cooperation to seek protective treatment.

8.4 The obligations in this clause 8 survive for 2 years after this Agreement ends.

## 9. WARRANTIES

9.1 Each Party warrants that it has full power and authority to enter into and perform this Agreement.

9.2 The Supplier warrants for a period of 30 days from the Effective Date (the "**Warranty Period**") that the Services will perform materially in accordance with the Documentation. The Customer's sole and exclusive remedy, and the Supplier's sole obligation, for breach of this warranty is for the Supplier to use reasonable efforts to correct the non-conformity, provided the Customer notifies the Supplier in writing in reasonable detail within the Warranty Period.

9.3 The warranty in clause 9.2 does not apply to non-conformities caused by misuse, modification, unauthorised use, Customer Data, third-party products or services, or use contrary to the Documentation.

## 10. DISCLAIMER OF WARRANTIES

10.1 EXCEPT AS EXPRESSLY SET OUT IN THIS AGREEMENT, THE SERVICES AND DOCUMENTATION ARE PROVIDED "AS IS" AND "AS AVAILABLE". TO THE FULLEST EXTENT PERMITTED BY LAW, THE SUPPLIER DISCLAIMS ALL OTHER WARRANTIES, CONDITIONS AND REPRESENTATIONS, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, ACCURACY, QUIET ENJOYMENT, AND ANY WARRANTIES ARISING FROM COURSE OF DEALING, COURSE OF PERFORMANCE OR USAGE OF TRADE.

10.2 THE SUPPLIER DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE OR FREE FROM VIRUSES OR OTHER HARMFUL COMPONENTS, THAT ALL ERRORS WILL BE CORRECTED, THAT THE SERVICES WILL MEET THE CUSTOMER'S

REQUIREMENTS, OR THAT THE SERVICES WILL ACHIEVE ANY PARTICULAR MARKETING, SALES, REVENUE OR OTHER BUSINESS RESULT. THE SUPPLIER IS NOT RESPONSIBLE FOR DELAYS, FAILURES OR LOSSES ARISING FROM THE INTERNET, ELECTRONIC COMMUNICATIONS OR THIRD-PARTY SERVICES OUTSIDE ITS REASONABLE CONTROL.

10.3 THE CUSTOMER ACKNOWLEDGES THAT IT IS SOLELY RESPONSIBLE FOR ITS MARKETING CONTENT AND CAMPAIGNS AND FOR COMPLIANCE OF ITS COMMUNICATIONS WITH APPLICABLE ANTI-SPAM, MARKETING, CONSUMER-PROTECTION AND PRIVACY LAWS. THE SUPPLIER GIVES NO LEGAL, REGULATORY OR COMPLIANCE ADVICE.

## 11. INDEMNIFICATION

11.1 The Supplier shall defend the Customer against any third-party claim alleging that the Customer's use of the Services in accordance with this Agreement infringes that third party's intellectual property rights, and shall pay damages and costs finally awarded or agreed in settlement by the Supplier.

11.2 The Supplier has no obligation under clause 11.1 to the extent a claim arises from: (a) Customer Data; (b) modification of the Services not made by the Supplier; (c) combination of the Services with items not supplied by the Supplier; (d) use contrary to the Documentation or this Agreement; or (e) use after the Supplier has made available a non-infringing alternative. If a claim is made or likely, the Supplier may procure the right to continue use, modify or replace the Services, or terminate the affected Services and refund prepaid Fees for the period after termination. This clause 11 states the Supplier's entire liability and the Customer's exclusive remedy for infringement claims.

11.3 The Customer shall defend the Supplier against any third-party claim arising from Customer Data, the Customer's marketing content or communications, or the Customer's breach of clause 2.3 or clause 6.1, and shall pay damages and costs finally awarded or agreed in settlement by the Customer.

11.4 The indemnified Party shall give prompt written notice of the claim, allow the indemnifying Party sole control of the defence and settlement (provided no settlement imposes liability on the indemnified Party without its consent, not to be unreasonably withheld), and provide reasonable cooperation at the indemnifying Party's expense.

## 12. LIABILITY

12.1 The liability of each Party to the other arising out of or in connection with this Agreement, whether in contract, tort (including negligence), breach of statutory duty or otherwise, is unlimited. No cap on liability applies to either Party.

12.2 Nothing in this Agreement limits any liability to the extent it cannot be limited under applicable law.

12.3 Each Party is liable only for losses that are the direct and reasonably foreseeable consequence of its breach, or as otherwise expressly provided in clause 11, and shall use reasonable efforts to mitigate its losses.

12.4 The Supplier is not liable for any loss or damage to the extent caused by: (a) the Customer's breach of this Agreement; (b) the Customer's failure to maintain the security of its credentials and systems; (c) Customer Data or the Customer's instructions; (d) the matters excluded from the warranty in clause 9.3 or the availability calculation in clause 5.1; or (e) any event outside the Supplier's reasonable control.

## 13. TERMINATION

13.1 Neither Party may terminate this Agreement for convenience. This Agreement may be terminated only in accordance with this clause 13 or expires in accordance with clause 3.

13.2 Either Party may terminate this Agreement for cause by written notice if the other Party: (a) commits a material breach that is not capable of remedy; (b) commits a material breach that is capable of remedy and fails to remedy it within 30 days after written notice specifying the breach; or (c) becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to bankruptcy or similar proceedings that are not dismissed within a reasonable period.

13.3 On expiry or termination: (a) the Customer's right to use the Services ends; (b) the Customer shall pay all undisputed Fees accrued and unpaid up to the effective date of termination; (c) each Party shall return or destroy the other's Confidential Information on request, subject to legal retention requirements and routine backups; and (d) clause 6.5 applies.

13.4 Clauses 1, 4 (as to accrued amounts), 7, 8, 10, 11, 12, 13.3, 14, 15, 17 and 18, and any other provision intended by its nature to survive, survive expiry or termination.

## 14. GOVERNING LAW AND DISPUTES

14.1 This Agreement and any dispute or claim arising out of or in connection with it (including non-contractual disputes) are governed by the laws of Delaware, without regard to its conflict-of-laws principles.

14.2 The Parties shall first attempt in good faith to resolve any dispute through escalation to senior executives. Failing resolution, each Party submits to the exclusive jurisdiction of the state and federal courts located in Delaware, and waives any objection to venue in those courts. Nothing prevents either Party from seeking urgent injunctive relief to protect its Confidential Information or intellectual property.

## 15. NOTICES

15.1 Notices under this Agreement must be in writing and delivered by hand, by recognised courier, or by email with confirmation of transmission, to the address (or email address) most recently notified by the receiving Party for that purpose, marked for the attention of its legal department. Invoices may be sent to the Customer's accounts-payable contact notified to the Supplier.

15.2 A notice is deemed received on delivery if delivered by hand or courier, and on the next business day after transmission if sent by email without notification of non-delivery.

## 16. FORCE MAJEURE

Neither Party is liable for any delay or failure to perform its obligations (other than an obligation to pay undisputed sums) caused by events beyond its reasonable control, including natural disaster, war, terrorism, civil disturbance, governmental action, labour disputes not involving its own personnel, failures of public utilities, telecommunications or the internet, or widespread cyber-attack, provided it notifies the other Party promptly and uses reasonable efforts to resume performance.

## 17. ASSIGNMENT AND SUBCONTRACTING

17.1 The Customer may not assign, transfer or subcontract any of its rights or obligations under this Agreement without the Supplier's prior written consent, not to be unreasonably withheld.

17.2 The Supplier may assign this Agreement to an affiliate or to a successor to all or substantially all of its relevant business or assets, and may use subcontractors to perform the Services, remaining responsible for them as provided in this Agreement.

## 18. GENERAL

18.1 **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties concerning its subject matter and supersedes all prior proposals, negotiations, representations and understandings. Each Party acknowledges that it has not relied on any statement not expressly set out in this Agreement. No terms in any Customer purchase order or other business form apply.

18.2 **Amendment and Waiver.** This Agreement may be amended only in writing signed by both Parties. No failure or delay in exercising a right operates as a waiver of it.

18.3 **Severability.** If any provision is held invalid or unenforceable, it shall be enforced to the maximum extent permissible and the remaining provisions continue in full force.

18.4 **Relationship.** The Parties are independent contractors. Nothing in this Agreement creates a partnership, agency or employment relationship. There are no third-party beneficiaries.

18.5 **Publicity.** Neither Party shall issue press releases about this Agreement without the other's prior written consent.

18.6 **Counterparts.** This Agreement may be executed in counterparts and by electronic signature, each of which is an original and all of which together constitute one instrument.

## 19. EXECUTION

The Parties have caused this Agreement to be executed by their authorised representatives.

| | **Customer** | **Supplier** |
|---|---|---|
| **Party** | Arcadia Retail Inc. | Kestrel Marketing Cloud Inc |
| **Signature** | _____ | _____ |

| | Customer | Supplier |
|---|---|---|
| **Name** | Helena Cruz | Sofia Marchetti |
| **Title** | VP Technology Sourcing | Authorised Signatory |
| **Date** | November 27, 2025 | November 30, 2025 |